

26VECV01742 26VECV01742

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Case Number: 26VECV01742 Hearing Date: July 29, 2026 Dept: 107

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

COUNTY OF LOS ANGELES

NORTHWEST DISTRICT

Mehran A. Okhovat,

Plaintiff,

v.

Safe Hands Hospice Care, Inc., et al.

Defendants.

Case Number Department

26VECV01742

107

COURT'S [TENTATIVE]

ORDER RE:

Motion

to Compel Deposition

[THE FOLLOWING IS A TENTATIVE RULING IN THE ABOVE CASE]:

(1) Grant Motion to Compel

Deposition; (2) Grant Plaintiff's request for monetary sanctions against Defendant in the reduced sum of \$1,995.50.

I.

BACKGROUND

Plaintiff

Mehran A. Okhovat ("Plaintiff") is a board-certified family physician. (First Amended Complaint ["FAC"] ¶ 8.) On or about April 15, 2024, Plaintiff entered into a professional services agreement (the "Contract") with Defendant Rubia King as CEO and Defendant Junaida Shakhvaladyan as CFO and Secretary. (FAC ¶ 14.) Per the Contract, Plaintiff was to act as Medical Director of Defendant Safe Hands Hospice Care, Inc. ("Safe Hands"). (FAC ¶ 14.) The Contract limited Plaintiff's role to clinical oversight and patient care. (FAC ¶ 14.) Billings, administrative functions, and day-to-day operations were King's and Shakhvaladyan's responsibility. (FAC ¶ 14.) Plaintiff was a W-9 independent contractor, not an employee. (FAC ¶ 15.)

On

November 8, 2024, Plaintiff terminated his Contract after discovering ethical issues and irregular practices involving Safe Hands' operations. (FAC ¶ 17.) Plaintiff instructed Shakhvaladyan, King, and persons acting on Safe Hands' behalf to not use Plaintiff's name on any documentation or CMS filing. (FAC ¶ 17.) Defendants then engaged in a fraudulent scheme including identity theft, the unauthorized use of Plaintiff's electronic signature, fraudulent enrollment of Plaintiff in Medicare records with a backdated start date, concealment of patients and CMS audit activity, submission of noncompliant Medicare claims, and unauthorized use of Plaintiff's credentials. (FAC ¶ 19.) Due to Defendants' conduct, Plaintiff's Medicare billing privileges were revoked by CMS. (FAC ¶ 20.)

On

March 23, 2026, Plaintiff filed a complaint against Defendants Safe Hands, King, Shakhvaladyan, and Does 1 through 100, alleging causes of action for: (1) breach of written contract; (2) breach of the implied covenant of good faith and fair dealing; (3) breach of fiduciary duty; (4) conspiracy to commit fraud; and (5) fraudulent concealment.

On

April 23, 2026, Plaintiff filed a first amended complaint against Defendants Safe Hands, King, Shakhvaladyan, and Does 1 through 100, alleging causes of action for: (1) breach of written contract; (2) breach of implied covenant of good faith and fair dealing; (3) conspiracy to commit fraud; (4) fraud (intentional misrepresentation); (5) fraudulent concealment; and (6) identity theft/misappropriation of professional credentials.

On

July 10, 2026, Plaintiff filed a motion to compel the deposition attendance and document production of Defendant Junaida Shakhvaladyan (the "Motion"). On July 22, 2026, Defendant Shakhvaladyan ("Defendant") filed an opposition. On July 23, 2026, Plaintiff's counsel filed a declaration.

On

July 23, 2026, Plaintiff filed amendments to complaint identifying Doe 1 as Ronald Vano and Doe 2 as Ma Elnora Palmario.

II.

MEET

AND CONFER

A

motion to compel a deposition must "be accompanied by a meet and confer declaration under section 2016.040, or, when the deponent fails to attend the deposition and produce the documents, electronically stored information, or things described in the deposition notice, by a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance." (Code Civ. Proc., § 2025.450, subd. (b)(2).)

Plaintiff's

counsel submits a declaration stating that after Defendant failed to appear at the deposition, Plaintiff's counsel attempted to contact Defendant by telephone to meet and confer, reschedule the deposition, and obtain the documents. (Kohanim Declaration ¶ 9.) Plaintiff's counsel states "Defendant did not answer, and her voicemail mailbox was full and unable to accept messages." (Kohanim Declaration ¶ 9.) Plaintiff's counsel also sent Defendant a meet and confer letter. (Kohanim Declaration ¶ 10.)

The

court finds Plaintiff satisfied the meet and confer requirement.

III.

LEGAL

STANDARD

“Any party may obtain

discovery within the scope delimited by Chapter 2 (commencing with Section 2017.010), and subject to the restrictions set forth in Chapter 5 (commencing with Section 2019.010), by taking in California the oral deposition of any person, including any party to the action. The person deposed may be a natural person, an organization such as a public or private corporation, a partnership, an association, or a governmental agency.” (Code Civ. Proc., § 2025.010.)

An

oral deposition “shall be scheduled for a date at least 10 days after service of the deposition notice.” (Code Civ. Proc., § 2025.270, subd. (a).) “The service of a deposition notice under Section 2025.240 is effective to require any deponent who is a party to the action or an officer, director, managing agent, or employee of a party to attend and to testify, as well as to produce any document, electronically stored information, or tangible thing for inspection and copying.” (Code Civ. Proc., § 2025.280, subd. (a).)

“If, after service

of a deposition notice, a party to the action or an officer, director, managing agent, or employee of a party, or a person designated by an organization that is a party under Section 2025.230, without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice.”

(Code Civ. Proc., § 2025.450, subd. (a).) The motion must set forth “specific facts showing good cause justifying the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice.” (Code Civ. Proc., § 2025.450, subd. (b)(1).)

“Any party served

with a deposition notice that does not comply with Article 2 (commencing with Section 2025.210) waives any error or irregularity unless that party promptly serves a written objection specifying that error or irregularity at least three calendar days prior to the date for which the deposition is scheduled, on the party seeking to take the deposition and any other attorney or party on whom the deposition notice was served."(Code Civ. Proc., § 2025.410, subd. (a).)

IV.

DISCUSSION

Plaintiff

moves for an order compelling Defendant to complete a deposition within ten days of the Motion's hearing and compelling Defendant to produce documents responsive to the demand for production of documents served with Plaintiff's notice of deposition. (Motion p. 2.)

In

opposition, Defendant argues she has not been properly served with the first amended complaint, so the court has no jurisdiction over Defendant. (Opposition pp. 1-2.) Defendant also argues no exigent circumstances justify compelling Defendant to be deposed until after proper service of the summons. (Opposition p. 2.) Finally, Defendant argues they are out of the country to care for Defendant's mother from July 21 to August 8, 2026, and is unavailable to be deposed until she returns. (Opposition p. 2.)

Under

Code of Civil Procedure section 2025.210, subdivision (b):

The

plaintiff may serve a deposition notice without leave of court on any date that is 20 days after the service of the summons on, or appearance by, any defendant. On motion with or without notice, the court, for good cause shown, may grant to a plaintiff leave to serve a deposition notice on an earlier date.

Plaintiff

filed proofs of service showing Plaintiff served Defendant with the summons, complaint, and first amended complaint by substituted service on May 18, 2026. (Proof of Service filed 05/20/26.) Defendant argues the proof of service is void "because Defendant neither lives nor works at the address listed."

(Opposition p. 2.) Defendant states the address was formerly Defendant's business address for Safe Hands, but that business ceased operations last year. (Opposition pp. 1-2.) Defendant submits an exhibit purportedly showing the entity occupying the address, Dega Home Health, returned the papers purportedly served to Defendant. (Opposition pp. 1-2.)

Defendant

has not moved to quash service of summons. Further, "[t]he filing of a proof of service declaration ordinarily creates a rebuttable presumption that the service was proper, but only if the service declaration 'complies with the statutory requirements regarding such proofs.'" (Lebel v. Mai ("Lebel") (2012) 210 Cal.App.4th 1154, 1164.) That presumption may be rebutted by contrary evidence submitted by a defendant. (Fernandes v. Singh (2017) 16 Cal.App.5th 932, 941, fn. 6.)

Defendant

relies on a single unauthenticated exhibit and statements in Defendant's memorandum of points and authorities, with no accompanying declaration, to argue Plaintiff served Defendant at the wrong address. The court finds this evidence does not rebut the presumption service was proper.

Plaintiff

served Defendant with a notice of deposition and demand for production of documents by personal service on June 8, 2026. (Kohanim Declaration ¶ 6.) The deposition was noticed for June 18, 2026. (Kohanim Declaration ¶ 5.) Plaintiff's counsel states that "Defendant did not serve any objection to the deposition notice or the accompanying document demands." (Kohanim Declaration ¶ 5.)

Code

of Civil Procedure section 2025.410, subdivision (a) states:

Any

party served with a deposition notice that does not comply with Article 2 (commencing with Section 2025.210) waives any error or irregularity unless that party promptly serves a written objection specifying that error or irregularity at least three calendar days prior to the date for which the deposition is scheduled, on the party seeking to take the deposition and any other attorney or party on whom the deposition notice was served.

Defendant

waived any error or irregularity with the deposition notice because Defendant failed to serve an objection to the deposition notice.

Plaintiff

is entitled to depose Defendant. Thus, the court orders Defendant to appear for deposition.

Plaintiff's

counsel submits a declaration stating:

The

documents demanded in the Notice of Deposition and Demand for Production of Documents (Exhibit A) are directly relevant to the claims and defenses in this action, including the identity of individuals who used or authorized the use of Plaintiff's name, medical license, and NPI in Safe Hands' Medicare enrollment, billing, and hospice certification records, and to Plaintiff's pending Medicare appeal concerning the revocation of Safe Hands' Medicare billing privileges and Plaintiff's placement on the Medicare Preclusion List.

(Kohanim

Declaration ¶ 11.)

Defendant

does not dispute that good cause exists to compel production of these documents. The court finds good cause exists.

Plaintiff

requests the court order Defendant to appear for deposition within ten (10) days of the Motion's hearing. Ten days after July 29, 2026, is Saturday, August 8, 2026. An email submitted with Defendant's opposition indicates Defendant's counsel agreed to produce Defendant for a deposition on August 10. (Opposition Ex. B pdf p. 13.) The court, therefore, will order Defendant to appear for deposition on or before August 10, 2026.

V.

SANCTIONS

If a motion to compel a deposition is granted, "the court shall impose a monetary sanction . . . in

favor of the party who noticed the deposition and against the deponent or the party with whom the deponent is affiliated, unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2025.450, subd. (g)(1).)

Plaintiff requests \$3,120.50 in monetary sanctions against Defendant. (Motion p. 11.) This reflects 4.5 hours of attorneys’ fees to prepare the Motion, at \$450.00 per hour, the \$60.00 motion filing fee, and \$1,035.50 in court reporter fees for Defendant’s non-appearance. (Kohanim Declaration ¶ 12.)

The court finds Defendant failed to act with substantial justification and no other circumstances make imposing sanctions unjust. The court understands Defendant’s counsel represented to Plaintiff’s counsel in an email dated July 13, that Defendant was out of the country from July 21 to August 8. (Opposition Ex. B pdf p. 13.) But Defendant being out of the country from July 21 to August 8 does not excuse or explain Defendant’s failure to appear for deposition on June 18, 2026.

The court further finds 4.5 hours of attorneys’ fees to prepare the Motion is excessive, given the Motion raises no complex issues.

The court grants Plaintiff’s request for monetary sanctions in the sum of \$1,995.50, reflecting 2.0 hours of attorneys’ fees to prepare the Motion, at \$450.00 per hour, the \$60.00 filing fee, and \$1,035.50 in court reporter fees for Defendant’s non-appearance.

VI.

CONCLUSION

For the foregoing reasons, the Motion is granted. Defendant is ordered to appear for deposition on or before Monday, August 10, 2026. The court also grants Plaintiff’s request for monetary sanctions in the reduced sum of \$1,995.50, to be paid by Defendant to Plaintiff’s counsel within thirty (30) days of this order.

Dated: July 29, 2026 _____ Hon.

Eric Harmon

Judge of the Superior Court